

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and email and Defendant has failed to respond within the required time frame.

Defendants' Opposition concedes that responses were not timely served. Defendants represent that they intend to serve verified responses to the RFAs that are in substantial compliance with CCP 2033.330 before the hearing on this motion. There is no evidence before the Court that they have done so.

Monetary sanctions are mandatory per CCP 2033.280(c). Plaintiff did not request sanctions and did not provide evidence to support the Court's determination of a reasonable amount. Therefore, no sanctions will be imposed.

Plaintiffs' Motion to Deem Requests for Admission, Set One Admitted by Defendants is **GRANTED**. A proposed order has been lodged and will be executed.

CAPITAL ONE, N.A. VS. WHITMIRE VAZQUEZ

CASE NUMBER: 23CVG-01238

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on June 3, 2026, to all parties and counsel for failure to appear on April 27, 2026. After the failure to appear, but before this OSC issued, Defense counsel filed a proof of service of their Order Granting Attorney's Motion to be Relieved as Counsel. Additionally, Plaintiff has filed a satisfactory Declaration in response to the OSC. Therefore, the OSC is VACATED as to all parties and counsel. Sanctions will not be imposed. This matter is ready to be reset for trial. Defendant is now proceeding in pro per. This matter is set for review regarding trial setting on **Monday, August 24, 2026 at 9:00 a.m. in Department 64**. Plaintiff is ordered to give Defendant notice and to file a proof of service of that notice. No appearances are necessary on today's calendar.

DURBIN, SR, ET AL. VS. MOHAMMADI, ET AL.

CASE NUMBER: 25CV-0208902

Tentative Ruling on Motion to Use Settled Statement: Plaintiff/Appellant William Durbin, Sr. moves for an order permitting the use of a settled statement pursuant to California Rules of Court Rule 8.137. Defendant opposes the Motion.

There is no dispute between the parties that a settled statement should be used in this matter. No reporter's transcript is available because the oral proceedings in the superior court were not reported by a court reporter. The dispute on this Motion concerns only the contents of the settled statement. Defendants object to the Proposed Settled Statement filed by Plaintiff concurrently with this Motion on the grounds that it is deficient, incomplete and inaccurate. Defendants have not submitted any proposed amendments or alternative proposed settled statement.